

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306928	MATES VS GENERAL MOTORS, LLC	MOTION FOR RELIEVE FROM DISMISSAL

Tentative Ruling: DENY

This matter was originally set for Trial on 6/5/2026. Plaintiff's counsel, John Brummel, requested that the trial be trailed to 6/12/2026. The court granted the request. On 6/12/2026, counsel for Plaintiffs once again requested that the trial be allowed to trail until 6/18/2026. On 6/18/2026, John Brummel, appearing in person in Dept.4, once again requested that the case be trailed until 6/23/2026. On 6/23/2026, counsel for Plaintiff failed to report for Jury Trial in Dept. 4. Defense counsel sent Plaintiff's counsel an email requesting his whereabouts. Plaintiff's counsel did not respond. On motion by defense counsel, the case was dismissed pursuant to CCP § 581(b)(5).

Plaintiff is not entitled to mandatory relief under CCP § 473(b) for failure to appear at trial (*Vandermoon v. Sanwong* (2006) 142 Cal.App.4th 315, 321.), and Plaintiff has not made an adequate showing of "excusable neglect" to merit discretionary relief.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405322	AINSWORTH VS THE REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO COMPEL PLAINTIFF TO ANSWER QUESTIONS AT DEPOSITION

Tentative Ruling: GRANT, in part, and DENY, in part. DENY Defendant's alternative request to STAY the action.

No Sanctions.

After a further meet and confer session, the parties were able to resolve 9 of the 24 disputed questions that arose during Plaintiff's depositions. The following fifteen (15) questions were left for the Court to resolve by way of this Motion to Compel: Questions 1, 5, 6, 7, 8, 9, 10, 11, 15, 16, 17, 18, 19, 21, and 23.

Questions regarding Plaintiff's Marital Relationship and Harassing Communications (Questions 1, 5, and 6)

Plaintiff testified that she felt "embarrassed and humiliated because of what [her] ex-husband was doing." (Baskaron Decl. Para.7, Ex. D [Ainsworth Depo. 75:4-5].) She separately attributes those same symptoms—"embarrassment" and "humiliation"—to Defendants' conduct, including failure to accommodate, discrimination, harassment, retaliation, and wrongful termination. (Baskaron Decl. Para. 2, Ex. C at p.2 [citing SROG No.15].) Plaintiff's own attribution of identical symptoms to two contemporaneous causes establishes the *Tylo* nexus (*Tylo v. Sup. Ct.* (1997) 55 Cal.App.4th 1379) as to her ex-husband's harassing conduct during Plaintiff's employment. Plaintiff alleges that Defendants discriminated against her "because of the domestic violence she was subjected to" (First Amended Complaint (FAC) Para.20), and that her ex-husband

contacted University personnel, placing her ex-husband's conduct directly at issue (FAC Para. 17). Question 5 and 6 (ex-husband's harassing texts and calls during the period covered by Plaintiff's employment) are Ordered compelled. GRANT as to Questions 5 and 6. Question 1 (what prompted you to file for divorce) is, by its framing, broader than *Tylo* permits, as it seeks an open-ended inquiry into the underlying causes of the divorce, rather than any specific symptom. DENY as to Question 1.

Questions regarding Plaintiff's Pre-Employment Emotional Distress and Medications (Questions 7, 8, 9, 10, 15, 16, 17, 18, 19, 23)

Plaintiff has alleged severe, ongoing emotional distress and "physical manifestations of emotional distress". (FAC Para.40) These allegations place her mental condition at issue and waive her right to privacy as to matters directly relevant to the existence, severity, and alternative sources of the alleged distress. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833) Questions regarding when Plaintiff first experienced anxiety (Questions 9 and 15), her first diagnoses of anxiety or depression (Questions 10 and 23), and her first use of the medications that Plaintiff asserts resulted from Defendants' conduct (Questions 7, 8, 17, 18, and 19), bear directly on whether the alleged condition pre-existed her employment. Question 16, which asks about current medications for the specific emotional distress symptoms that Plaintiff has placed at issue (embarrassment, depression, stress, anxiety, loss of sleep, and humiliation), bears directly on the existence and severity of the alleged distress, and falls within the *Vinson* waiver.

Plaintiff's proposed look-back cap of 8 years is not supported under *Britt v. Superior Court* (1978) 20 Cal.3d 844), and there is no logical reason to limit the responses to the 8 years before the filing of the action. DENY the cap.

GRANT as to Questions 7, 8, 9, 10, 15, 16, 17, 18, 19, and 23.

Question regarding the Frequency of Attorney-Client Communications (Question 11)

Defendants have not articulated why the frequency of Plaintiff's attorney communications, as distinct from the content of any communication, is directly relevant to any claim or defense in this action.

DENY as to Question 11

Question regarding Plaintiff's Prior Workers' Compensation Claim (Question 21)

Defendants have not articulated the direct relevance of an earlier, unrelated workers' compensation claim to the emotional distress or wrongful termination claims in this case.

DENY as to Question 21

The Alternative Stay request is Denied because the predicate for Defendants' request is now moot. Sanctions are not awarded because both parties have acted with substantial justification—Plaintiff has offered material compromises during the meet and confer process, and Defendants have offered the use of a stipulated protective order.